

SENATE BILL 1213

By Akbari

AN ACT to amend Tennessee Code Annotated, Title 49,
relative to language assistance for students.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-6-6001(j), is amended by
designating the existing language as subdivision (1) and adding the following new subdivision:

(2)

(A) A student who is an English language learner (ELL) and who
received language assistance services in the classroom during the school year
must be allowed to receive the same language assistance services while taking a
TCAP test or an end-of-course assessment, required by the state board of
education under subsection (a), as long as the receipt of language assistance
services does not invalidate the assessment.

(B) As used in this subdivision (j)(2), "language assistance services"
means services:

(i) Designed for speakers of languages other than English that
are provided pursuant to an individual learning plan (ILP) by a teacher
with an English as a second language endorsement to ELL students; or

(ii) That provide linguistically and academically appropriate
accommodations and scaffolding pursuant to an ELL student's ILP that
are provided by a general education teacher in the general education
classroom to ELL students whose parent or guardian has waived the
student's receipt of the services described in subdivision (j)(2)(B)(i).

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it, and applies to the administration of the TCAP test in the 2025-2026 school year and each school year thereafter.